

See Line 16 below.

Law & Motion

3. 9:00 AM CASE NUMBER: C22-00737

CASE NAME: SAHAR VS. SHEFAYEE JR.; MILLER

***HEARING ON MOTION IN RE: ATTORNEY FEES AND COSTS INCURRED ON APPEAL CCP 425.16(C)(1)
FILED BY:**

TENTATIVE RULING:

Defendant Miller filed this motion for attorney's fees and costs incurred in successfully opposing an appeal by plaintiff. On the original motion hearing date, the Court noted that there was no proof that the motion had been served on the opponent, and continued the motion to today with directions that the moving party must provide proper proof of service. Nothing has been filed since then, and there is still no indication that the motion was served, or that plaintiff is even aware of its existence. The motion is accordingly **denied** for failure to serve the motion and to comply with the Court's prior order.

4. 9:00 AM CASE NUMBER: C23-00009

CASE NAME: MICHELLE DALY VS. MICHAEL VISTNES, M.D.

***HEARING ON MOTION IN RE: FILE RECORDS UNDER SEAL
FILED BY: WHEATON, R.N., JEFF**

TENTATIVE RULING:

The calendaring of events in this case is a confusing spider web of events. The bottom line, however, is that we need to ascertain whether plaintiff's counsel is or is not going to continue to represent plaintiff, and whether (and how) plaintiff is going to continue to litigate the case, before we can fairly ask her or any of the other parties to proceed to full consideration of any of the substantive matters now before the Court.

There are three summary judgment motions on today's calendar, two of which were only belatedly added onto this calendar. Plaintiff, however, has sought to continue those motions because she asserts she needs some still-pending discovery in order to respond to them. Her own motion to compel the discovery she says she needs for that purpose is calendared for June 17.

There is also a motion to file under seal. Two related motions to file under seal, however, have been noticed for April 29, coinciding with a CMC set for that date. Even absent other concerns, the summary judgments should await ruling on the motions to seal.

And perhaps most consequentially, plaintiff's counsel has filed a motion for leave to withdraw from the representation, also calendared for June 17.

We need to find out whether plaintiff is going to continue pursuing this case, and if so, whether with

present counsel, with replacement counsel, or in pro per. Accordingly, **the Court issues the following scheduling orders:**

1. The CMC now set for April 29 will remain on calendar.
2. The three motions to file under seal (one calendared for today, the other two for April 29) are all set for hearing on April 29.
3. The motion to withdraw as counsel will remain on calendar for June 17.
4. The pending summary judgment motions, and the motion to compel discovery, are taken off calendar for now, at least temporarily, until we have sorted out plaintiff's representation situation.

The Court does not think it fair to advance the hearing on the motion to withdraw to April 29, given that plaintiff will need time to figure out her intended response to that motion. However, it is intended that a major topic of discussion at the April 29 CMC will be what, if anything, can be determined concerning the intentions of plaintiff and her counsel about continuing the lawsuit and with what representation. Assuming that the lawsuit will be going forward, it is the hope of the Court that we may be able to set new dates for the motion to compel and the summary judgment motions at the April 20 CMC.

5. 9:00 AM CASE NUMBER: C23-00009
CASE NAME: MICHELLE DALY VS. MICHAEL VISTNES, M.D.
HEARING ON SUMMARY MOTION FILED BY DEFENDANT JEFF WHEATON, RN
FILED BY: DEFENDANT JEFF WHEATON, RN
TENTATIVE RULING:

See Line 4 above.

6. 9:00 AM CASE NUMBER: C23-02347
CASE NAME: KRISTIN CASEY VS. KRIS HANSEN
***HEARING ON MOTION IN RE: QUASH SUBPOENAS AND FOR PROTECTIVE ORDER**
FILED BY: CASEY, KRISTIN
TENTATIVE RULING:

By stipulated request of the parties, this motion is **continued** to July 15, 2026.

7. 9:00 AM CASE NUMBER: C23-02723
CASE NAME: AMADOR RAMIREZ VS. M.O. DION AND SONS, INC.
***HEARING ON MOTION IN RE: PRELIMINARY APPROVAL OF CLASS ACTION AND PAGA SETTLEMENT**
FILED BY: RAMIREZ, AMADOR
TENTATIVE RULING:

Plaintiff Amador Ramirez moves for preliminary approval of his class action and PAGA settlement with defendant M.O. Dion and Sons. The motion is **granted**.